



Procedure No: EXP202314484 (PS/00042/2024)

RESOLUTION OF SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 30/08/23, A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity AREIA CONSULTING, LTD, with CIF: 928723895 (the defendant), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated in the complaint are as follows:

- On 28/08/23, the complainant received an email from the defendant offering the services of the consultancy.
- On 29/08/23, he responded requesting the cessation of commercial communications, as he has never had a commercial relationship with them.
- On 30/08/23, the defendant responded that they wanted to ensure that the email had been received, and asked how to get in touch with him.

Along with the complaint, the following documentation is attached:

- Dated 28/08/23, a copy of the email sent from the address info@areiaconsulting.es and received by the complainant at his email address ***EMAIL.1, offering services to "create content to position in Google":

o Hello, A.A.A.! How are you? I saw that you work as ***POSITION.1 and thought I would write to you. I am B.B.B., director of a small SEO writing agency that helps several companies create content to position in Google. Would you be interested in delegating this part of your SEO? If so, what would be the best way to send you my portfolio? Best regards,

- Dated 29/08/23, a copy of the email sent by the complainant to the address info@areiaconsulting.es requesting that they do not send him any more emails:

o I don't know where you got my email address, but since I have no type of commercial relationship or prior interaction with you or your company, and I have not given my express consent to receive this type of commercial communication, I would like to remind you that the General Data Protection Regulation (GDPR) clearly states that consent must be given freely, informed, specific, and unequivocal. Due to this, I urge you to immediately cease sending these commercial communications to my email address (...)

- Dated 30/08/23, a copy of the email sent from the email address info@areiaconsulting.es to the complainant's email ***EMAIL.1 with the following message:

o "Hello, A.A.A.! I just wanted to make sure you saw my last message. What is the best way to get in touch with you?" (...)

SECOND: On 15/11/23, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), the complaint submitted was admitted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679, of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

- According to the Red.es Organization, the domain "areiaconsulting.es" is registered in the name of B.B.B., ***ADDRESS.1.
- It has been verified that the internet browser redirects the URL "areiaconsulting.es" to the website <https://areiaconsulting.com> and that this page offers a writing service for "Reviewed Professional Texts, That You Can Publish Without Fear and That Position Your Website".
- In the "Privacy Policy" of the website <https://areiaconsulting.com>, it is stated that data protection

rights can be exercised by writing to AREIA CONSULTING accompanied by a photocopy of the D.N.I. and in the "Legal Notice" it is informed that the person responsible for the site is: (...)

- The IP address that identifies the computer originating the reported emails was assigned at the time of the reported facts to MICROSOFT CORPORATION.

- Requested information from B.B.B. regarding the reported facts, a response was received in this Agency on 01/12/23, in which he states the following:

- o Regarding the origin of the complainant's email address, he states that it was obtained through the LinkedIn platform.

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The purpose and intention of AREIA CONSULTING in contacting the claimant was due to professional interest in the company or organization where the interested party was developing their professional activity and not with the individual holder of this email address.

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As a result of receiving the request, they have conducted the relevant investigations and have verified that there are no other types of personal data of the interested party in the systems or databases of AREIA CONSULTING.

o

They do not have documentary evidence of the consent granted by the claimant for the sending of communications.

o

They have no record of having received communication from the claimant in which they expressed or requested the exercise of their right to object to receiving commercial communications.

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As a consequence of the silence on the part of the claimant regarding the last email sent from Areia Consulting, dated 30/08/23, this silence was understood as a lack of interest on their part, and no further attempts were made to contact the interested party.

FOURTH: On 08/02/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringements of Article 21 of the LSSI, classified as "minor" in Article 38.4.d).

In the opening agreement, it was determined that the sanction that could correspond, taking into account the existing evidence at that time and without prejudice to what may result from the instruction, would amount to a total of 2,000 euros (two thousand euros).

The notification of the initiation of the file was carried out in accordance with the rules established in the LPACAP. According to a certificate from the Postal Service, the initiation document sent to the address at ***DIRECCION.2 was returned to the sender on 27/03/24.

On 10/04/24, the notification of the initiation agreement was made through an announcement in the Unique Edict Board of the Official State Bulletin, in accordance with Article 44 LPACAP. In this announcement, the respondent is informed about the possibility of obtaining a copy of the opening agreement.

No written allegations regarding the initiation of the file have been received by this Agency.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the formulation of allegations has elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file in this Agency.

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Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the LSSI attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

First: It is recorded that on 28/08/23 the claimant received an email from the respondent offering the services of the consulting firm via an email sent from the address info@areiaconsulting.es to the address ***EMAIL.1, with the subject: "Create content to rank on Google":

"Hello, A.A.A.! How are you? I saw that you work as ***PUESTO.1 and I thought to write to you. I am B.B.B., director of a small SEO writing agency that helps several companies create content to rank on Google. Would you be interested in delegating this part of your SEO? If so, what would be the best way to send you my portfolio? Best regards,

Second: It is recorded that on 29/08/23 the claimant responded by sending an email to the address info@areiaconsulting.es requesting the cessation of commercial communications:

"I don't know where you got my email address, but since I have no commercial relationship or prior interaction with you or your company, and I have not given my express consent to receive this type of commercial communications, I would like to remind you that the General Data Protection Regulation (GDPR) clearly states that consent must be given freely, informed, specific, and unequivocal. Due to this, I urge you to immediately cease sending these commercial communications to my email address (...)"

Third: It is recorded that on 30/08/23 the claimant received an email from the address info@areiaconsulting.es with the following message:

"Hello, A.A.A.! I just wanted to make sure you saw my last message. What is the best way to get in touch with you? (...)"

Fourth: It is recorded in the "Privacy Policy" of the website <https://areiaconsulting.com> that the domain "areiaconsulting.es" is the responsibility of the entity AREIA CONSULTING, LTD.

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LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its

implementing regulations shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the competencies attributed to it by other laws."

II

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as a service of the information society and defined in its Annex as: "f) Commercial communication": any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity.

Therefore, the concept of commercial communication, according to the previous definition, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Service of the Information Society" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient."

The concept of "Service of the Information Society" also includes services not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.

According to section d) of the aforementioned Annex, the recipient is the "natural or legal person who uses, whether or not for professional reasons, a service of the information society."

III

Classification of the infringement.

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The fact that the respondent sends advertising emails to the complainant that had not previously been requested or expressly authorized, and even after the complainant has requested not to receive them again, constitutes a violation of the provisions of Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not previously been requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited."

IV

Sanction

The aforementioned infringement is classified as "minor" in Article 38.4.d) of that regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and do not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Based on the evidence obtained, it is considered appropriate to scale the sanction to be imposed

according to the following aggravating criteria, established in Article 40 of the LSSI:

- The existence of intent (section a), since the complainant had requested not to receive any more commercial communications, and despite this, a new email was sent to them.

In accordance with these criteria, it is deemed appropriate to impose a sanction of €2,000 (two thousand euros) for the infringement of Article 21.1 of the LSSI.

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In accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the entity AREIA CONSULTING, LTD, with CIF: 928723895, for the infringement of Article 21 of the LSSI, classified as "minor" in Article 38.4.d), a sanction of 2,000 euros (two thousand euros).

SECOND: TO NOTIFY this resolution to the entity AREIA CONSULTING, LTD.

THIRD: To warn the sanctioned party that the imposed sanction must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. or, failing that, the collection will proceed in the executive period.

Upon receiving the notification and once it is enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through

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the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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